

Stereo HCJ DA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

F.A.O No. 138 of 2019

Amir Abbas Minhas V/S Deputy Commissioner
Chakwal and another.

J U D G M E N T

Date of hearing	09.06.2021
Appellant(s) by	Mr. Osama Amin Qazi, Advocate.
Respondent(s) by	Mirza Asif Abbas, Assistant Advocate General.

Sultan Tanvir Ahmad, J. The present appeal has been filed against the order dated 30.10.2019 passed by the Respondent No.1, whereby the declaration in favour of the Appellant vide notification No.6278 GC, dated 31.10.2019 was annulled.

2. Mr. Osama Amin Qazi, learned counsel for the Appellant has submitted that the impugned order is against the law; that the impugned order is in violation of Article 10-A of the Constitution of the Islamic Republic of Pakistan, 1973 as proper opportunity to defend was not granted; that Respondent No.1 has violated Section 19(1) of the Press, Newspaper, News Agencies and Books Registration Ordinance, 2002 (“**the Ordinance**”); that Respondent No.1 has acted arbitrarily, in a slipshod manner and haste; that the impugned order is based on surmises and conjectures.
3. Conversely, Mirza Asif Abbas, learned Assistant Advocate General appearing on behalf of the

Respondents has vehemently opposed the appeal and has submitted that the Appellant has violated Paragraph No.3 of the Ethical Code of Practice contained in the Schedule in the Press Council of Pakistan Ordinance, 2002.

4. Arguments heard and with the able assistance of the learned counsel of the parties, record has been perused.

5. On 26.08.2019, Show Cause Notice No.4393 GC was issued containing the allegation of violation of the Ordinance and the Ethical Code of Practice. It has been alleged in the Show Cause Notice that a news about the death of one Muhammad Jawad Bhatti was published in the newspaper weekly “*Chakwalian*”, Chakwal. As per the allegations the death was attributed to the negligence of the doctor as well as the medical staff of District Headquarter Hospital, Chakwal. It has further been alleged in the Show Cause Notice that imputation in the newspaper was untrue. The Show Cause Notice was issued and action was initiated on the request of Respondent No.2. The relevant part of Show Cause Notice is as follows:-

*“Please refer to the news item published in weekly “Chakwalian” Chakwal dated 10.08.2019 wherein a news about Mr. Muhammad Jawad Bhatti, R/o Dhab Khushal was published that he died due to the negligence of duty doctor and staff of the District Headquarter Hospital, Chakwal. **MS, DHQ Hospital, Chakwal has requested to take necessary action** against the Publisher of the weekly “Chakwalian” Chakwal, on account of biased reporting against the staff of District Headquarter Hospital, Chakwal and spreading disinformation and defaming a public sector health Institution without establishing the fact.”*

6. Section 19(1) of the Ordinance provides that any person who is aggrieved from a newspaper, can file an application to Press Registrar, who will then forward the same to the District Co-ordination Officer/Deputy Commissioner for making a declaration. Press Registrar has been defined in Section 2 (m) of the Ordinance which provides that Press Registrar is appointed by the Federal Government. The relevant part of Section 19(1) of the Ordinance is as under:-

“On the application of the Press Registrar either suo moto or based on the information through any person, the District Co-ordination Officer empowered to authenticate a declaration under this Ordinance, is of opinion that any declaration made in respect of a newspaper should be cancelled, he may, after giving the person concerned an opportunity of showing cause against the action proposed to be taken, hold an enquiry into the matter and if, after considering the cause, if any, shown by such parties and after giving them reasonable opportunity of being heard, he is satisfied that;”

Emphasis supplied

7. Perusal of the aforementioned provisions of the Ordinance reflect that District Co-ordination Officer/ Deputy Commissioner empowered to authenticate a declaration has power to cancel the declaration as well. However, the highlighted part of Section 19(1) of the Ordinance shows that District Co-ordination Officer/ Deputy Commissioner can use the power of cancellation only when application in this regard has been moved by the Press Registrar himself. The District Co-ordination Officer/ Deputy Commissioner has no *suo moto* power and he cannot initiate the action on the complaint of any other person apart from Press Registrar. The wording of the Show Cause Notice (reproduced above) is very clear

that Press Registrar has not moved this complaint and that the action has been taken on the complaint of Medical Superintendent, District Headquarter Hospital Chakwal. This fact is not disputed before me that in the present case no application whatsoever was submitted against the Appellant or weekly newspaper “*Chakwalian*” Chakwal by the Press Registrar. It is, therefore, evident that District Co-ordination Officer/Deputy Commissioner Chakwal has assumed the jurisdiction in the matter on the basis of incompetent application. The entire superstructure built upon illegal assumption of jurisdiction has to crumble on the ground as *coram non judice*.

This Court in case titled MUHAMMAD IDREES AASI Versus DISTRICT COORDINATION OFFICER, FAISALABAD AND 2 OTHERS” (2009 C L C 1163 LAHORE), has dealt with the issue in hand as follows:-

“So far as the action of the D.C.O. is concerned, the record and the facts are not much in favour of the appellant, but, unfortunately he has proceeded very quickly without following the procedure under section 19 of the said Ordinance. The requirements of the said section in terms of initiation of the proceedings by the Registrar is very clear and unless the case is referred by the Registrar, D.C.O. cannot take any action.”

In case titled MIR ABDUL RAZZAQ Versus D.C.O., GUJRAT (P L D 2017 LAHORE 147), this Court declared that a Show Cause Notice issued by the District Co-ordination Officer/Deputy Commissioner Chakwal which is not referred by the Press Registrar is without lawful authority. The following part of the said judgment is relevant:-

“Keeping the above provision of law and the case law on the subject in juxtaposition with the

show cause notice issued by the respondent it has surfaced that the matter was never referred by the Press Registrar to the respondent to act under section 19. He on his own motion and without any referral from the Press Registrar took up the matter and cancelled the declaration.”

Further reliance in this regard is placed on case titled QAISAR NADEEM SAQI Versus DISTRICT COORDINATION OFFICER (DCO), HAFIZABAD AND 8 OTHERS (P L D 2006 LAHORE 76).

8. Under Article 18 of the Constitution of the Islamic Republic of Pakistan, 1973 the citizens have right to enter into any lawful ‘profession or occupation’ and Article 18 also guarantees to protect the ‘profession or occupation’, subject to law and regulation. The Authorities can regulate the ‘profession or occupation’, however, while exercising these powers, authorities should be careful and must remain within the four corners of law. Care and caution should be used before taking any extreme measures and option to provide remedy for wrong by imposing fines or issuance of warnings must be explored, before such extreme steps.

9. The impugned order dated 30.10.2019 has been passed without lawful authority. Consequently, this appeal is **allowed** and the impugned order dated 30.10.2019 passed by the Respondent No.1/Deputy Commissioner, Chakwal is **set-aside**. The declaration of the Appellant with respect to weekly newspaper “Chakwalian” stands restored.

(SULTAN TANVIR AHMAD)
JUDGE

APPROVED FOR REPORTING

JUDGE